

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: May 28, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Abinante vs. Kunzler Bean & Adamson, PC 2024-01423181	Motion to Compel Answers to Special Interrogatories Motion to Compel Production of Documents Defendants Kunzler Bean & Adamson, PC and Michael Penley's Motions to Compel Plaintiff Matthew Abinante, DO's Responses to Request for Production of Documents, Set One and Special Interrogatories, Set One are GRANTED. Defendants served Dr. Abinante with their first set of Special Interrogatories and Request for Production on September 16, 2025. Dr. Abinante failed to provide any responses and has indicated he will not oppose the motions. Accordingly, the motions are GRANTED. (Code Civ. Proc., §§ 2030.290, 2031.020.) Dr. Abinante is ordered to provide verified responses without objections to the outstanding discovery within 20 days of this hearing. Defendants' request for monetary sanctions is GRANTED in the amount of \$880 (2 hrs at \$220/hr x 2 motions) against Dr. Abinante and his counsel of record. Sanctions to be paid within 30 days.
2	Chao vs. Air Combat USA, Inc. 2022-01258475	Motion to Be Relieved as Counsel of Record <i>Off calendar. See minute order dated 5/19/26.</i>
3	City of Fullerton vs. Air Combat USA, Inc. 2026-01548989	Motion to Be Relieved as Counsel of Record <i>Off calendar. See minute order dated 5/20/26.</i>
4	Ho vs. Little Saigon Inn 2025-01512937	Demurrer to Complaint Defendant Little Saigon Inn's demurrer to the sole cause of action for premises liability brought by Cong Van Ho is sustained with leave to amend. Ho has not alleged sufficient facts showing Saigon owed him a duty to protect him from his alleged injuries. Ho is granted ten days leave to amend. Defendant Saigon to give notice.
5	Jerisat vs. Young	Motion for Reclassification

	2025-01476022	Defendant Steven Young’s motion for reclassification of this action as limited jurisdiction is DENIED. (Code Civ. Proc. §403.040, subd. (b)(1).) Defendant has not sufficiently shown that the case is incorrectly classified as an unlimited civil case. “A party seeking to reclassify a case from unlimited to limited faces a ‘high threshold’” (<i>Hiona v. Superior Court</i> (2020) 48 Cal.App.5th 866, 872 [citing <i>Ytuarte v. Superior Court</i> (2005) 129 Cal.App.4th 266, 278].) There must be a finding “that the verdict will ‘necessarily’ fall short of the superior court jurisdictional requirement”. (<i>Id.</i> [citing <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257, 270.]) The focus of the inquiry is not on the likelihood of the plaintiff obtaining a judgment in excess of the jurisdictional threshold; rather, the question is whether it is possible that the plaintiff could obtain “a jurisdictionally appropriate verdict.”(<i>Id.</i> [citing <i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402.]) Defendant’s motion argues that reclassification is warranted because it is not “plausible” that Plaintiff’s claims will result in a verdict that exceeds the jurisdictional threshold for civil unlimited. This is not the correct standard to apply in determining whether reclassification is warranted. Plaintiff alleges he is owed \$28,275.20 for costs and expert fees he allegedly incurred in the representation. (See FAC ¶¶19-20). Moreover, Plaintiff alleges he is owed the reasonable value of the legal services he provided to Paquin. Additionally, the FAC includes a cause of action for fraud with a prayer for punitive damages. Defendant’s evidentiary showing in support of the motion does not establish as a legal certainty that Plaintiff’s potential recovery will not exceed the jurisdictional threshold of \$35,000. Defendant shall provide notice.
7	Libertucci vs. Cooper 2023-01370576	Motion for Sanctions No tentative.
8	Murchison Consulting, Inc. vs. Bloomstone 2025-01458900	Default Prove Up <i>Off calendar. See minute order dated 5/21/26.</i>
9	Precision Airparts Support Services, Inc. vs. Clark	<u>Defendants’ Motions to Tax Costs on Appeal</u> <i>Motion to Tax Costs on Appeal (ROA No. 819)</i>

	2018-01021840	Defendants Precision Airparts Support Services, Inc., Tony Ordaz, and Ira Smith’s (collectively, defendants) motion to tax plaintiff Linda Clark’s (plaintiff) “Memorandum of Costs on Appeal No. 1” is GRANTED as to the \$76,594.50 in attorney fees claimed under item 9 only, and otherwise DENIED. To be clear, this first motion to tax costs (ROA No. 819) is directed at plaintiff’s 11/14/25 memorandum of costs on appeal pertaining to the appeal of the judgment, which the parties refer to as the “Memorandum of Costs on Appeal No. 1” (ROA No. 789). Defendant has challenged items 2, 3, and 9 of plaintiff’s Memorandum of Costs on Appeal No. 1. Item 2 and 3, which seek \$3,248 in clerk’s transcript preparation costs and \$2,500 in reporter’s transcript preparation costs, appear facially proper. (See Cal. Rules of Court, rule 8.278(d)(1)(B); see also ROA Nos. 694 [notice of clerk’s transcript fees], 697 [notice to reporter to prepare reporter’s transcript on appeal], 698 [designation of record on appeal].) The verified costs memorandum therefore constitutes prima facie evidence of their reasonableness. (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) Defendants have entirely failed to meet their burden to demonstrate otherwise. (See <i>ibid.</i> [burden].) In any event, plaintiff has adequately substantiated these costs. (Duffy Decl. ¶¶ 5-6, Ex. 4.) Item 9 seeks \$76,594.50 in attorney fees pursuant to contract. (See Duffy Decl. ¶ 4, Ex. 3; see also ROA No. 788 [motion for attorney fees on appeal pursuant to contract].) Contractual attorney fees can only be claimed by noticed motion, and not by the filing of a memorandum of costs. (<i>Lee v. Wells Fargo Bank, N.A.</i> (2001) 88 Cal.App.4th 1187, 1198; see Cal. Rules of Court, rule 3.1702; see also <i>Wood v. Santa Monica Escrow Co.</i> (2009) 176 Cal.App.4th 802, 807 [the recovery of costs on appeal and the right to attorney fees are governed by separate rules; “an award of costs on appeal does not determine, or even indicate, who is the prevailing party in the lawsuit for the purpose of awarding fees”]; <i>Butler-Rupp v. Lourdeaux</i> (2007) 154 Cal.App.4th 918, 928; Cal. Rules of Court, rule 8.278(d)(2).) As plaintiff acknowledges in her opposition, the court has already determined that plaintiff’s request for attorney fees at this stage in litigation is premature. (See Duffy Decl. ¶ 4, Ex. 3; ROA No. 866 [4/23/26 minute order].) <i>Motion to Tax Costs on Appeal (ROA No. 823)</i>
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		Defendants’ motion to tax plaintiff’s “Memorandum of Costs No. 2” is GRANTED. This second motion to tax costs (ROA No. 823) is directed at plaintiff’s 11/14/25 memorandum of costs on appeal pertaining to her appeal of the postjudgment costs award, which the parties refer to as the “Memorandum of Costs on Appeal No. 2” (ROA No. 790). The only item that defendants challenge in plaintiff’s Memorandum of Costs on Appeal No. 2 is item 9, which seeks \$76,594.50 in contractual attorney fees. (See Duffy Decl. ¶ 4, Ex. 3; see also ROA No. 788 [motion for attorney fees on appeal pursuant to contract].) As stated above, contractual attorney fees can only be claimed by noticed motion, and not by the filing of a memorandum of costs. (<i>Lee v. Wells Fargo Bank, N.A.</i>, <i>supra</i>, 88 Cal.App.4th at p. 1198; see Cal. Rules of Court, rule 3.1702; see also <i>Wood v. Santa Monica Escrow Co.</i>, <i>supra</i>, 176 Cal.App.4th at p. 807 [the recovery of costs on appeal and the right to attorney fees are governed by separate rules; “an award of costs on appeal does not determine, or even indicate, who is the prevailing party in the lawsuit for the purpose of awarding fees”]; <i>Butler-Rupp v. Lourdeaux</i>, <i>supra</i>, 154 Cal.App.4th at p. 928; Cal. Rules of Court, rule 8.278(d)(2).) As plaintiff acknowledges in her opposition, the court has already determined that plaintiff’s request for attorney fees at this stage in litigation is premature. (See Duffy Decl. ¶ 4, Ex. 3; ROA No. 866 [4/23/26 minute order].) Defendants shall give notice of all of the above.
10	U.S. Bank National Association vs. Pacific Life Insurance Company 2023-01330408	Motion to Seal Defendant Pacific Life Insurance Company’s Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records they seek to seal consist of, or directly reference, sensitive proprietary business information and/or private information concerning insurance policies held by non-parties to this litigation. (2) Moving Party has shown an overriding interest that supports sealing of records (see <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in

		protection of trade secrets]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286 [recognizing that confidential and sensitive business and financial information is ordinarily a matter appropriate for sealing]; <i>Overstock.com v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 503 [“The right to privacy under article I, section 1 of the California Constitution ‘extends to one’s confidential and financial affairs...’ This right embraces confidential financial information in ‘whatever form it takes, whether that form be tax returns, checks, statements, or other account information’”][internal citations omitted].) (3) Publication of these records would prejudice Moving Party by publicly disclosing its own confidential business information and also would prejudice non-parties to this litigation by disclosing private information regarding insurance policies pertaining to them. (4) Moving Party proposed a narrowly tailored means to protect the overriding interest by redacting only those portions of the motion to compel and exhibit 4 that include confidential information. Exhibit 6 can be sealed in its entirety, as the entire document constitutes Defendant’s confidential business information. (5) Moving Party has shown there is no less restrictive means of protecting the overriding interests identified above. Plaintiff originally filed the Motion to Compel Deposition on 4/15/26, and exhibits 3, 4, 5, and 6 to the motion were filed conditionally under seal, pursuant to the Parties’ stipulated protective order. Since Defendant only moved for the sealing of Exhibits 4 and 6, there is no ground for Exhibits 3 and 5 to be sealed. Within 10 days, Plaintiff shall submit an unredacted copy of the Motion to Compel Deposition which the clerk is directed to file under seal. Additionally, within 10 days Plaintiff shall submit a new redacted copy of the Motion to Compel Deposition which does not redact exhibits 3 and 5 to the motion and includes Defendant’s proposed redactions to exhibit 4 included as Exhibit A to the declaration of Alexander Robinson. (See ROA 392.) This new redacted copy of the motion shall be visible on the publicly available record of actions in this matter. Moving Party shall provide notice.
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11	Verify, Inc. vs. Marcin 2021-01205279	Motion for Summary Judgment <i>Continued to 10/8/26. See minute order dated 5/14/26.</i>
12	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion for Determination of Good Faith Settlement Defendant USAA Casualty Insurance Company's unopposed Motion for Determination of Good Faith Settlement is GRANTED. (Code Civ. Proc. 877.6.) The court finds the \$3,500 settlement between Plaintiff Kristi Whitewolf and USAA to be in good faith. Clerk to give notice.